

Court No. - 27

Case :- WRIT - C No. - 14676 of 2015

Petitioner :- Executive Engineer, Eudd-Vi And Another

Respondent :- Anand Agrawal And Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

As prayed by the learned counsel for the petitioner, put up tomorrow as fresh.

Order Date :- 23.3.2015

P.P.

Court No. - 27

Case :- WRIT - C No. - 14676 of 2015

Petitioner :- Executive Engineer, Eudd-Vi And Another

Respondent :- Anand Agrawal And Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

As prayed put up day after tomorrow i.e. 26.3.2015 as fresh.

Order Date :- 24.3.2015

Atul kr. sri.

Court No. - 27

Case :- WRIT - C No. - 14676 of 2015

Petitioner :- Executive Engineer, Eudd-Vi And Another

Respondent :- Anand Agrawal And Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Heard Sri Syed Safdar Ali Qazmi holding brief of Sri Mahboob Ahmad, learned counsel for the petitioners and learned Standing Counsel for respondent no.2.

By means of the present writ petition, the petitioner challenges the order dated 11.12.2014, by which the restoration application filed by respondent no.1 was allowed and the appeal was restored to its original number.

Challenging the order impugned, submission of learned counsel for the petitioner is that under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, there is no provision for review or recall of the order passed by the appellate authority. The appellate authority had no jurisdiction to review its order dated 22.05.2013. Therefore, the order passed by the appellate authority is wholly illegal and without jurisdiction.

In support of his submission, he has placed reliance upon a judgement of the Apex Court in the case of ***Rajeev Hitendra Pathak & others Vs. Achyut Kashinath Karekar & another*** reported in **2011 Law Suit (SC) 871**. On the strength of this judgment, it is submitted that there is no power of review or recall under the Electricity Act, 2003 and further the provisions of Civil Procedure Code are applicable to the Tribunal to a limited extent. The Tribunal could not have recalled or reviewed the order passed under the Electricity Act.

There is no dispute to the said legal proposition. It is trite that review is creature of statute, unless there is a specific provision under the statute, authority acting under the Act cannot review its own order.

However, applying this legal principle to the instant case, it may be seen that in the present case, the appeal was dismissed on 22.05.2013 in the absence of the appellant on the ground that he

had not deposited the pre-requisite 1/2 of the assessed liability under Section 127 (2) of the Electricity Act, 2003. Pre-requisite deposits as contemplated under Section 127 (2) of the said Act has not been made, therefore, the appeal could not be entertained.

It is further apparent from the order impugned that in the restoration application, the appellant had pleaded that pursuant to the order passed by this Court dated 22.11.2007, he had deposited the pre-requisite 1/2 of the assessed liability on 15.01.2008 and 28.03.2008. As the deposits were made in the year 2008, the appellate authority found that the appeal could not have been dismissed as not maintainable, in the year 2013.

In this view of the matter, it was found by the appellate authority that though the restoration application was delayed however, the application under Section 5 of the Limitation Act filed alongwith restoration application was allowed by imposing cost of Rs. 2500/-. The exparte order dated 11.12.2014 was recalled and the appeal was restored to its original number. The appeal had not been decided on merits. While considering the recall application, it was found that the correct facts of pre-requisite deposits made by the appellant in the year 2008, could not be brought before the appellate authority. Thus no infirmity is found in the order impugned. The legal principles relied upon by the learned counsel for the petitioner to challenge the recall order would not be applicable in the facts and circumstances of the case.

However, this Court finds that the appeal is pending since the year 2008, the writ petition is, therefore, disposed of with a direction to the appellate authority i.e. respondent no.2 to decide the appeal as expeditiously as possible, preferably within a period of two months from the date of production of a certified copy of this order, after putting notice to respondent no. 1 of the date fixed in the matter.

It is made clear that no unnecessary adjournment would be granted to either of the parties. In case of any unnecessary adjournment sought by either of the parties, heavy cost would be imposed by the appellate authority upon the party concerned.

Order Date :- 26.3.2015

Lbm/-